



CHAPTER 57

An Act to make further provision for guaranteed prices and assured markets for producers of agricultural produce in the United Kingdom; to authorise the payment of grants in respect of long-term improvements of agricultural land within the United Kingdom and in respect of the costs of certain transactions concerning such land; to make fresh provision for the development of the pig industry in Great Britain (including the production, processing, manufacture and distribution of pig products); to authorise payments into the Exchequer of Northern Ireland on account of expenses incurred for the benefit of producers of agricultural produce in Northern Ireland; and for purposes connected with the matters aforesaid. [31st July, 1957]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

GUARANTEED PRICES AND ASSURED MARKETS

1.—(1) The Minister may by order make such provision as appears to him to be expedient for providing guaranteed prices or assured markets for producers of produce described in the First Schedule to this Act. Power to provide for guaranteed prices, etc.

(2) Without prejudice to the generality of the foregoing provision, an order under this section in respect of any produce may in particular provide—

- (a) for the payment by the Minister to the Board administering a marketing scheme for the produce of sums calculated by reference to the difference between the value at guaranteed prices determined by the Minister in pursuance of the order of the produce sold by the Board

PART I
—cont.

and the receipts of the Board ascertained or estimated for the purposes of the order from the sale of the produce;

(b) for the payment by the Minister to producers of the produce, or to such other persons as may be prescribed by the order, of sums calculated by reference to the difference between guaranteed prices determined by the Minister in pursuance of the order and prices ascertained or estimated for the purposes of the order as the prices received or to be received by producers on the sale of the produce;

(c) for the purchase by or on behalf of the Minister or by the Board administering a marketing scheme for the produce, at guaranteed prices determined by the Minister in pursuance of the order, of any of the produce tendered by the producers, and, in the case of purchase by any such Board, for the payment by the Minister of the whole or part of any trading losses incurred or treated as incurred by the Board on the purchase and disposal of the produce.

(3) Subject to the provisions of this section, any guaranteed price to be determined by the Minister in pursuance of an order under this section shall be determined from time to time in respect of such guarantee periods (being periods of or of approximately twelve months) as may be prescribed by the order, and shall be so determined in the light of the conclusions of the Ministers from the annual review last held before the commencement of the period concerned.

(4) Subject to the following provisions of this part of this Act, any guaranteed price determined by the Minister for a guarantee period in pursuance of an order under this section may be varied by a subsequent determination of the Minister.

(5) An order under this section in respect of any produce described in the First Schedule to this Act may be made so as to apply only to particular descriptions or quantities of that produce, or may make different provision (including in particular provision for the determination of different guaranteed prices) in respect of different descriptions or quantities of that produce; and without prejudice to the generality of the foregoing provision produce may be distinguished for the purposes of any such order by reference—

(a) to the area in which, or the season of the year in which, it is produced, sold or despatched or delivered on sale;

(b) to the purpose for which it is sold or used;

(c) to the methods by which it is marketed, including the places at which it is delivered on sale.

(6) Where the dates of the guarantee periods prescribed by an order under this section are varied by a subsequent order, that

subsequent order may direct that the duration of the first guarantee period under the order as varied, or of the last previous guarantee period, shall be shortened or extended accordingly.

PART I
—cont.

2.—(1) The guaranteed price determined for a guarantee period in pursuance of an order under section one of this Act in respect of any produce shall not be less than ninety-six per cent. (calculated to the nearest figure or fraction which the Minister considers appropriate to that produce) of the corresponding price determined for the last previous guarantee period in pursuance of that order or of any previous order under the said section one relating to the same produce.

Provision
for stability
of particular
guarantees.

(2) Without prejudice to subsection (1) of this section, the guaranteed price determined for a guarantee period beginning in the year nineteen hundred and fifty-nine or any subsequent year in pursuance of an order under the said section one in respect of any produce described in Part II of the First Schedule to this Act shall not be less than ninety-one per cent. (calculated as aforesaid) of the corresponding price determined for the first of the three previous guarantee periods in pursuance of that order or of any previous order under the said section one relating to the same produce.

(3) In comparing for the purposes of this section the guaranteed prices determined in respect of any produce for any two guarantee periods there shall be made such adjustment, if any, as the Ministers, after consultation with producers, may determine to be appropriate in consequence of changes in the arrangements in force under section one of this Act in respect of those periods respectively.

(4) In relation to an order which provides for the determination of different guaranteed prices in respect of different descriptions or quantities of the produce to which the order applies, any reference in this section to the guaranteed price determined in pursuance of the order shall be construed as a reference—

- (a) where those different prices are derived from the conversion of a single guaranteed price determined in pursuance of the order, to that single guaranteed price;
- (b) in any other case, to the weighted average (calculated upon such principles as may be determined by the Ministers after consultation with producers) of those different prices:

Provided that in relation to an order under the said section one which applies primarily but not exclusively to produce within a standard quantity prescribed by or under the order, the Ministers may direct that this section shall have effect as if that order did not apply to any produce in excess of that quantity.

¶ PART I
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(5) Any reference in this section to the guaranteed price determined for a guarantee period shall be construed as a reference to the price so determined irrespective of any variation effected in pursuance of subsection (4) of section one of this Act.

(6) Without prejudice to the foregoing provisions of this section, the power of the Minister to vary a determination made in pursuance of an order under section one of this Act in respect of any produce specified in the First Schedule to this Act, or to vary during a guarantee period an order made under that section in respect of any such produce, shall not be exercised in a manner which, in his opinion, would reduce the amounts payable to the producers of that produce unless—

- (a) the reduction is made in pursuance of the conclusions of the Ministers from the annual review last held before the commencement of that period; or
- (b) the Ministers are satisfied, in consequence of a special review, that the reduction is expedient in the public interest.

Provision for
stability of
overall
guarantee.

3.—(1) Without prejudice to the provisions of section two of this Act, any guaranteed prices or factors relevant to the operation of guaranteed prices determined in pursuance of orders under section one of this Act for guarantee periods beginning in any year shall be such as to secure that the aggregate value of all those prices together with the aggregate value of all relevant production grants payable in respect of annual grant periods beginning in that year is not less than the amount produced—

- (a) by taking ninety-seven and a half per cent. of the sum of the aggregate values of the corresponding prices determined and production grants paid or payable in respect of guarantee periods and grant periods beginning in the last previous year; and
- (b) by adding to or deducting from the figure ascertained under paragraph (a) an amount equal to any net increase or net reduction (as the case may be) in the aggregate annual relevant costs of production of the produce to which the guaranteed prices apply which appears to the Ministers to have taken place since the determination of the corresponding prices referred to in that paragraph.

(2) For the purposes of this section, the value of any prices or grants shall be calculated according to such principles as may be determined by the Ministers after consultation with producers; and without prejudice to the generality of the foregoing provision, the aggregate value of the prices or production grants determined or payable for or in respect of guarantee periods or grant periods beginning in any year may (if so determined as aforesaid) be calculated by reference to the quantities of produce, the acreage of land or the amount of the costs to or in respect of which the corresponding prices or grants applied or

were payable in respect of guarantee periods or grant periods in the last previous year.

PART I
—cont.

(3) Subsections (4) and (5) of section two of this Act shall apply for the purposes of this section as they apply for the purposes of that section; and where the guaranteed price determined in respect of any produce for a guarantee period is adjusted in pursuance of subsection (3) of that section, the price as so adjusted shall be treated for the purposes of this section as the price determined in respect of that produce for that period.

(4) Without prejudice to the last foregoing subsection, if in the case of any year it appears to the Ministers, after consultation with producers, that in consequence of any change in the arrangements in force under section one of this Act in respect of produce of any particular class it is necessary so to do in order to enable a fair comparison to be made for the purposes of subsection (1) of this section between that and the previous year, they may direct that in relation to that year the said subsection (1) shall have effect as if no order under section one of this Act were or had been in force in respect of that produce in the case of that or the previous year.

(5) In this section the following expressions have the meanings hereby assigned to them, that is to say—

“production grant” means a grant payable under any enactment other than this Act (whether passed before or after the commencement of this Part of this Act), being a grant payable out of moneys provided by Parliament or by the Parliament of Northern Ireland in respect of agricultural land or agricultural produce, and any payment made by virtue of subsection (2) of section eight of the Agriculture Act, 1947 (which provides for acreage or other payments as an alternative to the provision of guaranteed prices);

“relevant production grant” means a production grant which is determined by the Ministers, after consultation with producers, to be relevant for the purposes of this section;

“relevant costs of production” means any costs of production (including grading, packing, transport and other ancillary operations) of which account is taken for the purpose of determining the guaranteed prices under any order under section one of this Act, not being costs of which account is required by that order to be taken in calculating the amount of any payments to be made by the Ministers by reference to the price so determined.

4. Sections two and three of this Act shall apply in relation to sugar beet as they apply in relation to produce described in Part I of the First Schedule to this Act, and references in those sections to an order under section one of this Act, to guaranteed

Application
to sugar beet
prices.

PART I
—cont.

prices determined for any guarantee period in pursuance of such an order and to the arrangements in force under the said section one shall be construed as including references respectively to section seventeen of the Sugar Act, 1956, to the prices initially determined under the said section seventeen for the purchase of home grown beet for delivery within any period so determined and to the arrangements in force under the said section seventeen; and the power to give directions under the proviso to subsection (4) of section two of this Act shall be exercisable in relation to home grown beet as if any directions under the said section seventeen were an order under the said section one.

**Power to make
provision for
protection of
guarantees.**

5.—(1) For the purpose of supporting any arrangements in force by virtue of an order under section one of this Act, and in particular of securing that payments (whether made by or on behalf of the Minister under any such order or by a Board to whom payments are so made) are made in proper cases only, the Minister may by order make provision—

- (a) for requiring that produce to which the order applies (being produce eligible for such payments as aforesaid or produce of any class or description which includes produce eligible for such payments) shall be marked in such circumstances, in such manner, for such purpose, and by or under the supervision of such person, as may be prescribed by or under the order;
- (b) for prohibiting the removal from markets or other places where produce is required to be marked in pursuance of the order of any produce to which the order applies which has not been so marked;
- (c) for requiring the production, or the keeping and production, by merchants or other persons of books, accounts or records relating to the purchase, sale or use of produce to which the order applies;
- (d) for enabling authorised officers of the Minister to enter upon land used for the production, storage, grading, packing, slaughter or sale of any produce to which the order applies, and to inspect and take samples of any such produce found upon land so used;
- (e) for any other matters for which provision appears to the Minister to be necessary or expedient for the purposes described in this subsection.

(2) Without prejudice to the generality of paragraph (e) of subsection (1) of this section, an order under this section which applies to produce being livestock may prohibit the use for breeding or milking of any livestock marked as eligible for payments in pursuance of an order under section one of this Act.

(3) Without prejudice to the generality of the said paragraph (e), an order under this section which applies to produce being potatoes may prohibit—

PART I
—cont.

(a) the sale or use for human consumption (including use in the preparation of food for human consumption);

(b) the sale or use for planting;

of potatoes purchased by or on behalf of the Minister or any Board in pursuance of an order under section one of this Act and sold by him or them as stockfeed.

6.—(1) Without prejudice to the powers conferred by section five of this Act, the Ministers may, for the purpose described in subsection (1) of that section, by order make special provision in respect of livestock, or livestock of any description, imported, removed or brought into the United Kingdom or any part of the United Kingdom from any of the Channel Islands, the Isle of Man or the Republic of Ireland. Special provisions as to the importation of livestock.

(2) An order under this section may regulate the times and places at which, and the routes by which, livestock may be imported, removed or brought as aforesaid, and may prohibit the removal, pending inspection or marking, of any livestock so imported, removed or brought and, in the case of cattle imported or brought from the Republic of Ireland, their removal without production of such certificate in respect of their exportation from that Republic as may be prescribed by the order.

(3) Subject to the following provisions of this section, any such order may contain such provisions as appear to the Ministers to be necessary for the due operation and enforcement of the order (other than provision for fine or imprisonment upon conviction of offences), and may in particular—

(a) authorise the seizure and sale of livestock, the forfeiture of livestock and the proceeds of sale of livestock, and the seizure and forfeiture of vehicles or containers used for the carriage, handling or concealment of livestock;

(b) enable authorised officers of the Minister to enter vehicles used or constructed or adapted for use for the carriage of livestock;

(c) require persons who are or have been in possession or control of livestock to furnish to such officers information with respect thereto.

(4) An order under this section which provides for the seizure of livestock or other things shall also provide for the display or other publication of notice of the seizure.

(5) An order under this section which provides for the forfeiture of livestock or other things seized or the proceeds of sale of livestock shall also provide that where within such period as may be prescribed by the order a person claims, in accordance with

PART I
—cont.

the order, that the livestock or other things seized belonged to him at the time of seizure and—

- (a) in the case of livestock, that they were not imported, removed or brought into the United Kingdom in contravention of the order;
- (b) in any other case, that they were not used for the carriage, handling or concealment of livestock imported, removed or brought into the United Kingdom in contravention of the order;

the forfeiture of the things seized or the proceeds of sale of livestock shall not be effected except by an order made by a court.

(6) In this section “livestock” includes the carcases of livestock.

Penalties.

7.—(1) If any person contravenes or fails to comply with any provision of an order under section five or section six of this Act, or knowingly has in his possession or control any livestock imported, removed or brought into the United Kingdom in contravention of an order under the said section six, he shall be liable on summary conviction to a fine not exceeding one hundred pounds or imprisonment for a term not exceeding three months or both.

(2) If any person wilfully obstructs an authorised officer or other person in the exercise of powers conferred on him by an order under section five or section six of this Act, he shall be liable on summary conviction—

- (a) in the case of a first offence, to a fine not exceeding twenty pounds;
 - (b) in the case of a second or subsequent offence, to imprisonment for a term not exceeding one month or to a fine not exceeding fifty pounds or both.
- (3) If any person—
- (a) knowingly or recklessly makes any false statement for the purpose of obtaining for himself or any other person any sum payable in pursuance of an order under this Part of this Act;
 - (b) with intent to deceive, alters, conceals or defaces any mark applied to produce in pursuance of any such order;
 - (c) applies to produce, without due authority and with intent to deceive, any mark prescribed by or under any such order or applies to produce a mark so closely resembling a prescribed mark as to be calculated to deceive; or
 - (d) wilfully makes a false entry in any book, account or record which is required to be produced in pursuance of any such order or, with intent to deceive, makes use of any such entry which he knows to be false;

he shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both, or on conviction on indictment to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding two years or both.

(4) Where an offence under this section which has been committed by a body corporate is proved to have been committed with the consent or connivance of, or to be attributable to any neglect on the part of, any director, manager, secretary or other similar officer, of the body corporate, or any person who was purporting to act in any such capacity, he as well as the body corporate shall be deemed to be guilty of that offence and shall be liable to be proceeded against and punished accordingly.

8.—(1) The Ministers may by order direct that the First Schedule to this Act shall have effect, for the purposes of all or any of the enactments to which it relates, as if produce of any description specified in the order were included in Part I or Part II of that Schedule, as the case may be.

(2) The Ministers may, after the annual review held in the year nineteen hundred and sixty and from time to time thereafter, take into consideration in consultation with producers the percentages specified in subsection (1) and subsection (2) of section two and subsection (1) of section three of this Act, and may by order substitute for any of those percentages such other percentage as they consider appropriate:

Provided that an order under this subsection shall not apply in relation to any determination made within twelve months after the date on which the order is made.

9.—(1) Any power of the Minister or Ministers to make orders under section one or section eight of this Act shall be exercised with the consent of the Treasury and after consultation with producers.

(2) An order under section eight of this Act shall be of no effect unless approved by resolution of each House of Parliament.

(3) Any statutory instrument containing an order under any provision of this Part of this Act, other than section eight or section ten, shall be laid before Parliament after being made, and shall cease to have effect (without prejudice to anything previously done thereunder or to the making of a new order) on the expiration of the period of forty days, calculated in accordance with subsection (1) of section seven of the Statutory Instruments Act, 1946, beginning with the day on which it is made unless within that period it has been approved by resolution of each House of Parliament.

(4) An order under this Part of this Act may provide for the delegation by the Minister of any functions (other than the function of determining guaranteed prices or factors relevant to the operation of such prices) conferred or imposed on him by the order.

PART I
—cont.

Provision for
application
to additional
produce and
variation of
minimum
percentages.

Supplementary
provisions as
to orders.

PART I

—cont.

Repeal of
certain
enactments
relating to
livestock
and cereals.

10.—(1) The Livestock Industry Act, 1937, and Parts I, II, and III of the Agricultural Development Act, 1939 (which made provision for the payment of subsidies in respect of home-grown oats and barley, for promoting the sales of such barley and for the payment of subsidies in respect of fat sheep) shall cease to have effect.

(2) On such day as the Minister of Agriculture, Fisheries and Food may by order appoint any money then standing to the credit of the Wheat Fund established under the Wheat Act, 1932, shall be paid to the said Minister and any other assets and any liabilities and obligations of the Wheat Commission constituted under that Act shall by virtue of this section and without further assurance be transferred to him.

(3) For the purpose of subsection (3) of section seven of the Wheat Act, 1932 (which requires the preparation of accounts relating to the Wheat Fund) the cereal year current on the day appointed under subsection (2) of this section shall be deemed to end on that day.

(4) As soon as the Minister of Agriculture, Fisheries and Food is satisfied that the said subsection (3) has been complied with on the part of the Wheat Commission in respect of the cereal year current on the day appointed under subsection (2) of this section, he shall by order dissolve that Commission, and thereupon the Wheat Acts, 1932 to 1940, shall cease to have effect.

Interpretation
of Part I.

11. In this Part of this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

“annual review” and “special review” mean an annual review or special review held under section two of the Agriculture Act, 1947;

“consultation with producers”, in relation to any exercise of a function conferred or imposed by this Part of this Act on the Minister or the Ministers, means consultation with such bodies of persons as appear to the Minister or Ministers to represent the interests of producers of the produce concerned;

“description” includes quality;

“marketing scheme” means a scheme for regulating the marketing of any produce under the Agricultural Marketing Acts, 1931 to 1949, or any corresponding legislation enacted by the Parliament of Northern Ireland;

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretaries of State respectively concerned with agriculture in Scotland and Northern Ireland, acting jointly;

“the Minister”, in relation to any part of the United Kingdom, means either that one of the Ministers who is concerned with agriculture in that part, or that Minister and either or both of the others acting jointly;

“produce” includes anything (whether live or dead) produced in the course of agriculture.

PART I
—cont.

PART II

GRANTS FOR FARM IMPROVEMENTS AND AMALGAMATIONS

12.—(1) With a view to assisting in the making of long-term improvements for the benefit of agricultural land the Minister may make out of moneys provided by Parliament grants towards the cost of such improvements of a kind mentioned in the Second Schedule to this Act as he may approve for that purpose, being improvements proposed in applications made to him within ten years from the commencement of this Part of this Act or such further time as may be allowed by an order under subsection (5) of this section.

Grants for long term improvements of agricultural land.

(2) An application under this section may be made by any person having an interest in the land for the benefit of which such an improvement is proposed or by any person intending to acquire such an interest if the improvement is approved, and shall contain such particulars as the Minister may require.

(3) An application under this section may propose more than one improvement and the Minister may, as he thinks fit, either refuse to approve a proposed improvement or approve it in whole or in part and subject to any conditions he may specify; but he shall not approve any improvement unless he is satisfied—

(a) that the land for the benefit of which the improvement is proposed is agricultural land occupied together with buildings and is capable of yielding a sufficient livelihood to an occupier reasonably skilled in husbandry, or will be capable of doing so as a result of the improvement; and

(b) that the cost of the improvement will not be unreasonably high in relation to the benefit to be derived therefrom; and

(c) that the improvement is of such a nature that a prudent landlord, having regard to its cost and to all other circumstances, would be willing to make it himself or to pay compensation (whether or not he was liable under any enactment to do so) to a tenant for making it.

(4) The Ministers may from time to time by order vary the Second Schedule to this Act, but without prejudice to the payment of any grant towards the cost of an improvement approved before the coming into operation of the order.

(5) The Ministers may from time to time by order extend the time within which applications under this section may be made,

PART II
—cont.

Amount and
payment
of grants
under s. 12.

but not beyond twelve years from the commencement of this Part of this Act.

13.—(1) The amount of any grant payable under this Part of this Act towards the cost of an improvement shall, subject to the following provisions of this section, be one-third of that cost so far as approved by the Minister as having been reasonably incurred.

(2) The Ministers may by regulations provide that the cost of any improvement specified in the regulations, or of a specified part of any such improvement, shall, at the option of the applicant for a grant under the last foregoing section, be taken to be such amount as may be so specified; and the amount of any grant payable under this Part of this Act towards the cost of such an improvement shall, if the applicant for the grant so elects in his application and the improvement is approved while the regulations are in force, be one-third of the amount so specified or, where the regulations make provision for the cost of part only of an improvement, one-third of the sum of the amount so specified for that part and of the actual cost (so far as approved by the Minister as having been reasonably incurred) of the remainder of the improvement, subject in either case, however, to the next following subsection.

(3) The Minister may reduce the amount of the grant or withhold the grant in any case where assistance in respect of the improvement is given under any other Act of Parliament.

(4) The grant shall be payable to the person or persons by whom or on whose behalf the work required for making the improvement is done and may be paid on the completion of that work or by instalments on the completion of parts thereof.

(5) This section has effect subject to the provisions of section fifteen of this Act.

Revocation
of approval
and recovery
of grant.

14.—(1) Where, after the Minister has approved a proposed improvement, it appears to him that the work required for making the improvement has been badly done, or has been or is being unreasonably delayed, or is unlikely to be completed, or that any condition subject to which the approval was given has not been or will not be complied with, he may revoke the approval in whole or in part.

(2) Before revoking his approval the Minister—

(a) shall, if so requested, give to any person who appears to him to have an interest in the land concerned or to whom the relevant grant would be payable, a written notification of the reasons for the proposed revocation; and

(b) shall afford to every such person an opportunity of appearing before and being heard by a person appointed for the purpose by the Minister, and shall consider the report of that person.

(3) If before the revocation any payment was made by way of grant towards the cost of the improvement, or, if the approval is revoked in part only, towards the cost of so much of the improvement as is no longer approved, the Minister may recover the payment.

PART II
—cont.

15.—(1) The following provisions of this section shall have effect where an improvement proposed in an application under section twelve of this Act consists of a cattle-grid to be provided in pursuance of the Highways (Provision of Cattle-Grids) Act, 1950, by an appropriate authority within the meaning of that Act. Special provisions as to cattle-grids.

(2) If under an agreement entered into by the authority under section ten of that Act any contribution towards the cost of providing the cattle-grid falls to be made by any other person, any grant made towards that cost under this Part of this Act shall be paid to that person instead of to the authority and the amount of the grant shall be one-third of the amount of his contribution, unless reduced as mentioned in subsection (3) of section thirteen of this Act.

(3) Where any grant has been paid to any person as provided by this section and any amount paid by him to the appropriate authority becomes repayable, one-third of that amount (or, where the grant was a smaller proportion of his contribution, that proportion of the amount) shall become payable by that person to the Minister.

16.—(1) With a view to securing the formation of economic units of agricultural land the Minister may make out of moneys provided by Parliament grants towards the costs of such transactions proposed in applications made to him under this section as he may approve for that purpose, being such costs as are mentioned in the next following subsection. Grants towards costs of amalgamation.

(2) An application under this section may be made within the time within which applications under section twelve of this Act may be made and may propose any transactions necessary or expedient for securing that agricultural land which is not an economic unit, but which together with some other agricultural land could form an economic unit, shall be owned and occupied with that other land; and the said costs are surveyor's fees and legal costs, stamp duty on any conveyance, tenancy agreement or mortgage, and any compensation for disturbance payable under section thirty-four of the Agricultural Holdings Act, 1948.

(3) An application under this section may be made by any person having an interest in any of the land the ownership and occupation of which as a unit is proposed in the application or by any person intending to acquire such an interest if the proposed transactions are approved, and shall contain such particulars as the Minister may require.

(4) The Minister may, as he thinks fit, approve a proposed transaction or refuse to approve it, and may give his approval subject to any conditions he may specify.

PART II
—*cont.*

(5) In this section "economic unit" means a unit capable of yielding a sufficient livelihood to an occupier reasonably skilled in husbandry.

**Amount and
payment of
grants under
s. 16.**

17.—(1) The amount of any grant payable under the last foregoing section towards any costs shall be one-third of those costs so far as approved by the Minister as having been reasonably incurred.

(2) The grant shall be paid on the completion of all the transactions towards the costs of which it is made and shall be paid to the person or persons by whom the costs were incurred; but if after any payment has been made by way of grant it appears to the Minister that any condition subject to which his approval was given has not been or will not be complied with he may revoke the approval and recover the payment.

(3) Before revoking his approval the Minister—

(a) shall, if so requested, give to any person who appears to him to have an interest in the land concerned or to whom the relevant grant would be payable, a written notification of the reasons for the proposed revocation; and

(b) shall afford to every such person an opportunity of appearing before and being heard by a person appointed for the purpose by the Minister, and shall consider the report of that person.

**Limit of
aggregate
amount of
grants under
Part II.**

18. The grants made under this Part of this Act shall not together exceed the sum of fifty million pounds or such greater amount, not exceeding fifty-five million pounds, as the Ministers may by order determine.

**Supplementary
provisions
as to orders
and
regulations.**

19.—(1) Any power of the Ministers to make orders or regulations under this Part of this Act shall be exercised with the consent of the Treasury.

(2) A statutory instrument containing regulations under section thirteen of this Act shall be subject to annulment in pursuance of a resolution of either House of Parliament.

(3) An order under subsection (4) or subsection (5) of section twelve of this Act shall be of no effect unless approved by a resolution of each House of Parliament, and an order under section eighteen of this Act shall be of no effect unless approved by a resolution of the Commons House of Parliament.

**Interpretation
of Part II.**

20. In this Part of this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

"agricultural land" means land used for agriculture;

"the Minister", means, in relation to England and Wales or Northern Ireland, the Minister of Agriculture, Fisheries and Food, and, in relation to Scotland, the Secretary of State;

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretaries of State respectively concerned with agriculture in Scotland and Northern Ireland, acting jointly.

PART II
—cont.

21. This Part of this Act shall, in its application to Scotland, have effect subject to the following modifications, that is to say— Application of Part II to Scotland.

(a) in subsection (2) of section twelve and in subsection (3) of section sixteen, after the words “having an interest” there shall be inserted the words “as proprietor or as tenant”;

(b) in subsection (2) of section sixteen, for the references to a mortgage and to section thirty-four of the Agricultural Holdings Act, 1948, there shall be substituted respectively references to a heritable security and to section thirty-five of the Agricultural Holdings (Scotland) Act, 1949.

22. This Part of this Act shall, in its application to Northern Ireland, have effect subject to the following modifications, that is to say:— Application of Part II to Northern Ireland.

(a) in subsection (2) of section twelve and subsection (3) of section sixteen, after the words “having an interest” there shall be inserted the words “as proprietor or as tenant”;

(b) section fifteen shall not apply;

(c) the reference in subsection (2) of section sixteen to legal costs shall include a reference to the costs of obtaining any requisite consent of the Ministry of Finance.

PART III

DEVELOPMENT OF THE PIG INDUSTRY

23.—(1). With a view to improving efficiency in the production, marketing and distribution of pigs and the production, processing, manufacture, marketing and distribution of pig products, and improving the quality of pigs and pig products, there shall be constituted a body to be called the Pig Industry Development Authority (hereafter in this Part of this Act referred to as “the Authority”) having the functions specified in Part I of the Third Schedule to this Act and such other functions as may be conferred on them by an order under subsection (2) of this section. Establishment and functions of Pig Industry Development Authority.

(2) The Ministers may by order confer on the Authority such functions as the Ministers think it expedient for the Authority to exercise for any of the purposes mentioned in subsection (1) of this section, being either—

(a) functions of a kind similar to the functions specified in the said Part I; or

PART III
—cont.

- (b) functions which in the opinion of the Ministers could be conveniently exercised in association with any of the functions so specified.

(3) Nothing in this section or any order thereunder shall be construed as authorising the Authority to engage in the business of buying and selling pigs or pig products or to undertake or promote the establishment of arrangements for marketing pigs or pig products.

Constitution
of the
Authority.

24.—(1) The Authority shall consist of seventeen members appointed by the Ministers and of those members—

- (a) three shall be persons (in this Part of this Act referred to as “independent members”) who in the opinion of the Ministers have no substantial financial interest in any business directly connected with any of the activities mentioned in subsection (1) of section twenty-three of this Act, but are otherwise qualified to serve on the Authority by reason of their financial, commercial, technical, scientific or administrative experience;
- (b) four shall be persons appointed as capable of representing the interests of commercial pig producers;
- (c) two shall be persons appointed as capable of representing the interests of pedigree pig breeders;
- (d) one shall be a person appointed as capable of representing the interests of persons employed in agriculture;
- (e) two shall be persons appointed as capable of representing the interests of producers of bacon;
- (f) one shall be a person appointed as capable of representing the interests of distributors of bacon;
- (g) two shall be persons appointed as capable of representing the interests of distributors of fresh pigmeat;
- (h) one shall be a person appointed as capable of representing the interests of manufacturers of pig products other than bacon;
- (i) one shall be a person appointed as capable of representing the interests of persons employed in the production, processing, manufacture, marketing or distribution of pig products.

(2) Before appointing any person to be a member of the Authority as capable of representing the interests of any class of persons, the Ministers shall consult with any organisation appearing to them to be representative of substantial numbers of the persons of that class.

(3) The Authority shall have a chairman and deputy chairman appointed by the Ministers from among the independent members.

(4) Every member of the Authority shall hold and vacate his office in accordance with the terms of his appointment and shall, on ceasing to be a member, be eligible for re-appointment, but a member may at any time, by notice in writing addressed to the secretary of the Authority, resign his office.

(5) The Authority shall—

(a) pay to their members such remuneration and such travelling or other allowances as the Ministers may determine in the case of those members respectively; and

(b) as regards any members in whose case the Ministers determine that this paragraph applies, pay such pensions, or make such payments towards the provision of pensions, to or in respect of them as the Ministers may determine in the case of those members respectively.

(6) The incidental provisions contained in Part II of the Third Schedule to this Act shall have effect in relation to the Authority.

25.—(1) The Authority may make and submit to the Ministers a scheme for the imposition of charges for enabling the Authority to meet their expenses, and for the recovery of such charges by the Authority in such manner and from such persons, being persons engaged in any of the activities mentioned in subsection (1) of section twenty-three of this Act or persons having the control and management of slaughterhouses in which pigs are slaughtered, as may be specified in the scheme, and the Ministers may by order approve any such scheme with or without modifications. Power to impose a levy.

(2) A scheme under this section shall specify the charges to be imposed thereby and may provide for their imposition in such circumstances as may be specified in the scheme and in particular for imposing different charges in different circumstances.

(3) A scheme under this section which provides for the imposition of charges in respect of the slaughter of pigs shall secure that no charge is made in respect of pigs slaughtered under the Diseases of Animals Act, 1950, or any order made thereunder.

(4) A scheme under this section which provides for the imposition of charges in respect of the slaughter of pigs and for their recovery from any person having the control and management of any slaughterhouse in which the pigs are slaughtered, may also make provision for enabling any such person—

(a) to recover the amount of any charge from any other person, being a person on whose instructions the pigs are slaughtered, notwithstanding the terms of any contract applicable to the slaughter of the pigs;

PART III
—cont.

- (b) to make from his payments to the Authority deductions in respect of his expenses of recovering any amount as mentioned in the foregoing paragraph.

(5) The power conferred by this section to make, submit and approve a scheme shall be construed as including power to make, submit and approve a scheme varying or revoking a scheme already approved.

(6) Any reference in this section to any person having the control and management of a slaughterhouse in which pigs are slaughtered includes a reference to a local authority providing slaughterhouse facilities for the slaughter of pigs under Part II of the Slaughterhouses Act, 1954, or Part IV of the Food and Drugs Act, 1955, or providing any similar facilities under any local enactment.

**Registration,
returns and
records.**

26.—(1) A scheme under section twenty-five of this Act may, so far as is necessary for determining the liability of persons to charges thereunder, confer on the Authority power to require any persons mentioned in subsection (1) of that section—

- (a) to be registered in a register kept for that purpose by the Authority;
- (b) to furnish returns and other information, and to produce for examination on behalf of the Authority books and other documents in their custody or under their control; and
- (c) to keep records and to produce them for examination as aforesaid.

(2) Returns or other information furnished to or obtained by any person in pursuance of a requirement made under a scheme by virtue of paragraph (b) or (c) of subsection (1) of this section shall not be disclosed except—

- (a) with the consent of the person by whom the information was furnished; or
- (b) to a member or officer of the Authority; or
- (c) in the form of a summary of similar returns or information furnished by or obtained from a number of persons, being a summary so framed as not to enable particulars relating to the business of an individual person to be ascertained therefrom; or
- (d) for the purpose of any legal proceedings (whether civil or criminal and including arbitrations) arising out of this Part of this Act.

(3) Any person who fails to comply with a requirement made under a scheme by virtue of subsection (1) of this section shall be

liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both.

PART III
—cont.

(4) Any person who—

- (a) in furnishing any information for the purposes of a scheme under section twenty-five of this Act, makes a statement which he knows to be false in a material particular or recklessly makes a statement which is false in a material particular; or
- (b) wilfully makes a false entry in any record which is required to be produced in pursuance of any such scheme; or
- (c) discloses any information in contravention of subsection (2) of this section;

shall be liable on summary conviction to a fine not exceeding one hundred pounds or to imprisonment for a term not exceeding three months or both, or on conviction on indictment to a fine not exceeding five hundred pounds or to imprisonment for a term not exceeding two years or both.

27.—(1) Where in the exercise of their functions the Authority render any services to any person they may make such charges in respect thereof as may be agreed between the Authority and that person. Miscellaneous
financial
powers of the
Authority.

(2) The Authority may borrow money and pledge, mortgage or charge any of their property (including the proceeds of the charges imposed by virtue of section twenty-five of this Act).

(3) The Authority shall have power to invest any moneys of the Authority which are not for the time being required for any other purpose in any securities in which trustees may invest trust moneys under the powers conferred by section one of the Trustee Act, 1925, or, with the approval of the Ministers, in any other securities.

28.—(1) The Authority shall prepare and transmit to the Annual Ministers annually a report setting out what has been done in the discharge of their functions under this Act during their financial year last completed and the Ministers shall lay a copy of the report before each House of Parliament. Annual
report and
accounts of
the Authority.

(2) The Authority shall keep proper accounts and shall prepare in respect of each financial year of the Authority statements of account in such form as the Ministers, with the approval of the Treasury, may direct; and the accounts of the Authority for each financial year shall be audited by auditors to be appointed by them.

PART III
—cont.

(3) No person shall be qualified to be appointed auditor under the last foregoing subsection unless he is a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Society of Incorporated Accountants;

The Institute of Chartered Accountants of Scotland;

The Association of Certified and Corporate Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom for the time being recognised for the purposes of paragraph (a) of subsection (1) of section one hundred and sixty-one of the Companies Act, 1948 by the Board of Trade.

(4) As soon as may be after the accounts of the Authority have been audited, the auditors shall transmit to the Ministers copies of the statements of account together with their report thereon, and the Ministers shall lay a copy of the statement and report before each House of Parliament.

(5) A copy of any annual report of the Authority or of their statements of account for any financial year shall at the request of any person and on payment of such fee, not exceeding two shillings and sixpence in the case of the annual report or one shilling in the case of the statements of account, as may be determined by the Authority be supplied to him by the Authority.

Provision
by Milk
Marketing
Boards of
artificial
insemination
services for
pigs.

29. Notwithstanding anything in the Agricultural Marketing Acts, 1931 to 1949, or in any milk marketing scheme in force under those Acts, the Board administering any such scheme shall have power, with the approval of the Minister by whom the scheme was approved and subject to any directions which may from time to time be given by him, to provide services of artificial insemination for pigs.

Dissolution
of Bacon
Development
Board and
Pigs and
Bacon
Marketing
Boards.

30.—(1) On the appointed day the assets, liabilities and obligations of the Bacon Development Board established under the Bacon Industry Act, 1938, and the Pigs Marketing Board established under the Pigs Marketing Scheme, 1933, shall by virtue of this subsection and without further assurance be transferred to the Authority.

(2) On or before the appointed day the Bacon Marketing Board established under the Bacon Marketing Scheme, 1933, shall transfer to the Authority assets of the Board which are

estimated by the Ministers to be worth a sum specified by them, being a sum which does not exceed the net value as so estimated of the assets of the Pigs Marketing Board transferred under subsection (1) of this section, and on that day the remaining assets and any liabilities and obligations then vested in the Bacon Marketing Board shall by virtue of this subsection and without further assurance be transferred to such body as may be nominated by the Ministers (being a body which appears to them to represent the interests of producers of bacon and has signified in writing its agreement to the nomination) or, in default of any such nomination, to the Authority.

(3) For the purpose of the accounting provisions applicable to any of the Boards mentioned in subsection (1) or subsection (2) of this section, the financial year or annual accounting period of that Board current on the day appointed for the transfer of its assets, liabilities and obligations shall be deemed to end on that day.

(4) As soon as the Ministers are satisfied that the accounting provisions applicable to any of the said Boards have been complied with on the part of that Board in respect of that year or period, they shall by order dissolve that Board, and thereupon any expenses incurred by that Board in complying with those provisions after the day appointed for the transfer of its assets, liabilities and obligations shall become a liability of the Authority or other body to whom its other liabilities have been transferred under this section.

(5) On the making of the last order required by subsection (4) of this section, the Bacon Industry Acts, 1938 and 1939, the Pigs Marketing Scheme, 1933, and the Bacon Marketing Scheme, 1933, shall cease to have effect.

(6) The accounting provisions applicable to the said Boards are paragraph 18 of the First Schedule to the Bacon Industry Act, 1938, in the case of the Bacon Development Board, paragraph 32 of the Pigs Marketing Scheme, 1933, in the case of the Pigs Marketing Board, and paragraph 33 of the Bacon Marketing Scheme, 1933, in the case of the Bacon Marketing Board.

(7) In this section "the appointed day" means such day as the Ministers may by order appoint and different days may be appointed for different purposes.

31.—(1) In this Part of this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

Provisions
supple-
mentary to
Part III.

"the Ministers" means the Minister of Agriculture, Fisheries and Food and the Secretary of State concerned with agriculture in Scotland, acting jointly;

PART III
—cont.

“ pig products ” includes pigmeat and bacon, but does not include anything which is not capable of being used for human consumption or in the preparation of food for human consumption.

(2) An order under section twenty-three or section twenty-five of this Act shall be of no effect unless approved by resolution of each House of Parliament.

PART IV

MISCELLANEOUS AND GENERAL

Exchequer
payments
in aid of
schemes for
agriculture
in Northern
Ireland.

32.—(1) In the financial year beginning on the first day of April, nineteen hundred and fifty-seven, and in each subsequent financial year during the period ending on the thirty-first day of March, nineteen hundred and sixty-two, the Minister of Agriculture, Fisheries and Food may pay into the Exchequer of Northern Ireland sums not exceeding one million pounds in respect of expenses incurred by the Ministry of Agriculture for Northern Ireland, in pursuance of arrangements approved for the purpose of this section by the Ministers, in making payments to or for the benefit of producers of agricultural produce in Northern Ireland.

(2) The Ministers may from time to time by order direct that the period specified in subsection (1) of this section shall be extended until such date, not later than five years from the date upon which it would otherwise expire, as may be specified in the order; and any such order may direct that in relation to the period of extension so specified the said subsection (1) shall have effect as if for the reference to one million pounds there were substituted a reference to such higher or lower amount as may be so specified.

(3) An order under this section shall be of no effect unless approved by resolution of each House of Parliament.

(4) If in any year during the period ending on the thirty-first day of March, nineteen hundred and sixty-two, or during any period of extension specified in an order under subsection (2) of this section, the sums paid into the Exchequer of Northern Ireland under subsection (1) of this section fall short of the maximum authorised by that subsection in the case of that year, the balance may be added to the sums payable under that subsection in the subsequent year or years of the same period or period of extension.

(5) If at the expiration of twelve months after the end of any such period as aforesaid any sums paid under subsection (1) of this section have not been applied in the payment of expenses incurred by the Ministry of Agriculture for Northern Ireland as therein mentioned, those sums shall be repaid to the Minister of Agriculture, Fisheries and Food.

(6) The Ministers shall, before the end of each financial year, lay before Parliament a statement describing the substance of any arrangements for the time being approved by them for the purposes of this section.

(7) In this section "the Ministers" has the same meaning as in Part I of this Act.

33.—(1) Any expenses incurred by the Minister of Agriculture, Fisheries and Food or by a Secretary of State under this Act shall be defrayed out of moneys provided by Parliament.

Expenses and receipts of Ministers.

(2) Any sums received or recovered by the said Minister or a Secretary of State in pursuance of this Act or any order made thereunder shall be paid into the Exchequer.

34. Part II of the First Schedule to the House of Commons Disqualification Act, 1957 (which specifies certain commissions, tribunals and other bodies all members of which are disqualified under that Act), shall have effect, in its application to the House of Commons of the Parliament of the United Kingdom, as if after the words "The Performing Right Tribunal" there were inserted the words "The Pig Industry Development Authority".

Disqualification of members of Pig Industry Development Authority for membership of the House of Commons.

35.—(1) In this Act the following expressions have the meanings hereby respectively assigned to them, that is to say—

General provisions as to interpretation, orders, etc.

"Act of Parliament" and "enactment" include respectively an Act and an enactment of the Parliament of Northern Ireland;

"agriculture" has the same meaning as in the Agriculture Act, 1947;

"assets" includes property and rights.

(2) Any power to make an order or regulations under this Act shall be exercisable by statutory instrument.

(3) Any power to make an order under this Act shall include power to revoke or vary that order by a subsequent order.

(4) References in this Act to any other enactment shall be construed as references thereto as amended, and as including references thereto as extended, by or under any subsequent enactment.

PART IV
—cont.Repeals and
transitional
provisions.

36.—(1) The enactments and regulations described in the Fourth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule—

- (a) in the case of the enactments and regulations described in Part I of that Schedule, on the commencement of Part I of this Act;
- (b) in the case of the enactments described in Part II of that Schedule, on the date on which the Wheat Commission is dissolved;
- (c) in the case of the enactments and regulations described in Part III of that Schedule, on the date of the making of the last order required by subsection (4) of section thirty of this Act.

(2) In Part I of the Agriculture Act, 1947, so far as not repealed by this section, any reference to produce mentioned in the First Schedule to that Act shall be construed as a reference to produce mentioned in the First Schedule to this Act and to sugar beet, and any reference to the provisions of the said Part I shall be construed as including a reference to the provisions of Part I of this Act.

(3) The period during which orders under subsection (1) of section four of the Agriculture Act, 1947, have effect (being a period which would otherwise expire with the fifth day of August, nineteen hundred and fifty-seven) shall be extended until the commencement of Part I of this Act, and any order in force under that subsection at the commencement of the said Part I shall continue in force and have effect as if made under section one of this Act, and may be revoked or varied accordingly.

(4) The provisions of the Livestock (Import from Eire and the Isle of Man) Regulations, 1945, being regulations made under subsection (3) of section twenty-eight of the Agriculture (Miscellaneous War Provisions) Act, 1940, shall, so far as those provisions could be made by an order under section six of this Act, continue in force notwithstanding the repeal of the said section twenty-eight and have effect as if made under the said section six, and may be revoked or varied accordingly.

Short title,
commencement
and extent.

37.—(1) This Act may be cited as the Agriculture Act, 1957.

(2) This Act, except subsection (3) of section thirty-six, shall come into force on the first day of September, nineteen hundred and fifty-seven.

(3) This Act, except Part III, extends to Northern Ireland.

SCHEDULES

FIRST SCHEDULE

Section 1.

PRODUCE QUALIFYING FOR GUARANTEE

PART I

CROPS

Wheat
Barley
Oats
Rye
Potatoes

PART II

LIVESTOCK AND LIVESTOCK PRODUCTS

Fat Cattle
Fat Sheep
Fat Pigs
Cow's Milk (Liquid)
Eggs (Hen and Duck in Shell)
Wool

SECOND SCHEDULE

Section 12.

IMPROVEMENTS ELIGIBLE FOR GRANT UNDER S. 12

1. Erection, alteration, enlargement or reconditioning of permanent farm buildings (other than dwelling-houses), and making or improvement of permanent yards, loading banks and stocks.

2. Provision of means of sewage disposal other than from dwelling-houses.

3. Making and improvement of roads, fords, bridges, railway crossings and creeps.

4. Provision or laying-on of electric light or power to farms for agricultural purposes.

5. Provision of pens and other fixed equipment for use in connection with the sheltering, gathering, marking, dipping, spraying, treatment or feeding of sheep and cattle.

6. Making and improvement of permanent fences (including hedges), walls and gates.

7. Provision of cattle-grids.

8. Reclamation of waste land.

9. Provision of shelter belts.

10. Removal of hedges and banks, filling in of ditches, removal of boulders, tree roots and other like obstructions to cultivation.

11. Claying and marling.

12. Any operation incidental to any of the operations specified in the other paragraphs of this Schedule or necessary or proper in carrying it out or securing the full benefit thereof.

Sections 23, 24.

THIRD SCHEDULE

PROVISIONS AS TO PIG INDUSTRY DEVELOPMENT AUTHORITY

PART I

FUNCTIONS OF THE AUTHORITY

1. Undertaking arrangements for assessing the breeding qualities of boars and sows and the management of the herds to which they belong on the basis of information recorded as to the pigs born to those boars and sows.
2. Promoting or undertaking the progeny testing of pigs and acquiring and maintaining establishments where progeny testing may be carried out (whether by the Authority or by any person on their behalf).
3. Promoting or undertaking the provision of services of artificial insemination for pigs.
4. Maintaining and publishing a register of pig herds appearing to the Authority to be efficiently managed and to conform to standards specified by the Authority.
5. Promoting the use for breeding purposes of boars of a quality approved by the Authority.
6. Promoting or, with the approval of the Ministers and the Lord President of the Council, undertaking investigations and research relevant to the problems of pig production, marketing and distribution and the production, processing, manufacture, marketing and distribution of pig products.
7. Formulating and encouraging the adoption of grading standards for pigs and pig products.
8. Undertaking the certification of pig products, the registration of certification trade-marks and the functions of proprietors of such marks.
9. Promoting or undertaking research into the demand (whether in Great Britain or elsewhere) for pigs and pig products and into matters connected therewith, including the collection and analysis of information about the demand and prices paid for pigs and pig products.
10. Promoting or undertaking arrangements for advertising and increasing the sales (whether in Great Britain or elsewhere) of pigs and pig products.
11. Undertaking arrangements for making available information obtained, and advising, on matters with which the Authority are concerned in the exercise of any of their functions.
12. Any function incidental or ancillary to any of the functions specified in the foregoing paragraphs.

PART II

INCIDENTAL PROVISIONS AS TO THE AUTHORITY

3RD SCH.
—cont.

1. The Authority shall be a body corporate with perpetual succession and a common seal and power to hold land without licence in mortmain.

2. The Authority may act notwithstanding a vacancy among the members of the Authority.

3. It shall be within the capacity of the Authority as a statutory corporation to do such things and to enter into such transactions as are incidental or conducive to the performance of their functions.

4. The Authority may appoint such advisory committees as they think fit to consider such matters with which the Authority may be concerned as they may specify and to report thereon to the Authority, and any such committee may comprise persons who are not members of the Authority.

5.—(1) A member of the Authority shall, if he is in any way directly or indirectly interested in a contract made or proposed to be made by the Authority, disclose the nature of his interest at a meeting of the Authority as soon as possible after the relevant circumstances have come to his knowledge.

(2) Any disclosure made by a member under the last foregoing sub-paragraph shall be recorded in the minutes of the Authority, and that member—

(a) shall not take part after the disclosure in any deliberation or decision of the Authority with respect to that contract, and

(b) shall be disregarded for the purpose of constituting a quorum of the Authority for any such deliberation or decision.

6. In the case of an equality of votes at any meeting of the Authority, the chairman of the meeting shall have a second or casting vote.

7. Subject to the two last foregoing paragraphs, the Authority may determine their own quorum and procedure and the quorum and procedure of any committee of the Authority.

8.—(1) The Authority may appoint a secretary and such other officers and such servants as the Authority may determine.

(2) The Authority shall—

(a) pay to their officers and servants such remuneration as they may determine, and

(b) as regards any officers or servants in whose case they may determine to do so, pay to or in respect of them such pensions and gratuities, or provide and maintain for them such pension schemes (whether contributory or not), as the Authority may determine.

9. The application of the seal of the Authority shall be authenticated by the signatures of two members of the Authority and of the secretary thereof or some other person authorised by the Authority to do so in his stead.

Section 36.

FOURTH SCHEDULE
ENACTMENTS AND REGULATIONS REPEALED
PART I

*Enactments and regulations repealed on
commencement of Part I of Act*

Session and Chapter	Short Title	Extent of Repeal
1 Edw. 8. & 1 Geo. 6. c. 50.	The Livestock Industry Act, 1937.	The whole Act.
1 Edw. 8. & 1 Geo. 6. c. 70.	The Agriculture Act, 1937.	Part II. In section twenty-nine, in subsection (1), paragraph (b). In section thirty-two, the definitions of "acre" and "home-grown". In section thirty-three, paragraph (d). The First Schedule.
1 & 2 Geo. 6. c. 25.	The Eire (Confirmation of Agreements) Act, 1938.	In section three, subsection (3) and in subsection (4), the words from "and may" to "1937".
2 & 3 Geo. 6. c. 48.	The Agricultural Development Act, 1939.	Parts I, II and III. Section thirty-three. In section thirty-four, subsections (1) and (4). In section thirty-five, subsection (1), and in subsection (2), the words "or under" where first occurring, and the words from "or who" to "power". Sections thirty-six and thirty-seven. In section thirty-eight, in subsection (1), the definitions of "acre", "home-grown", "the Ministers" and "ploughing", and subsections (2), (3) and (4). In section thirty-nine, paragraphs (b) and (c). The Schedules.
3 & 4 Geo. 6. c. 14.	The Agriculture (Miscellaneous War Provisions) Act, 1940.	Part II. Section twenty-eight.
10 & 11 Geo. 6. c. 48.	The Agriculture Act, 1947.	In section thirty-two, subsection (5). The Third Schedule. Sections three to seven. In section eight, in subsection (1), the words from "and the expression" to the end of the subsection.
2 & 3 Eliz. 2. c. 5.	The Statute Law Revision Act, 1953.	The First Schedule. In the Fourth Schedule, the entry relating to section ten of the Agricultural Development, Act, 1939.
4 & 5 Eliz. 2. c. 48.	The Sugar Act, 1956.	In section seventeen, subsection (8).
—	The Defence (Agriculture and Fisheries) Regulations, 1939.	Part III. The Second Schedule.

PART II

*Enactments repealed on dissolution of
Wheat Commission*4TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
22 & 23 Geo. 5. c. 24.	The Wheat Act, 1932.	The whole Act.
2 & 3 Geo. 6. c. 37.	The Wheat (Amendment) Act, 1939.	The whole Act.
3 & 4 Geo. 6. c. 14.	The Agriculture (Miscellaneous War Provisions) Act, 1940.	Part I. The First and Second Schedules.

PART III

*Enactments and regulations repealed on date of last
order under s. 30 (4)*

Session and Chapter	Short Title	Extent of Repeal
1 & 2 Geo. 6. c. 71.	The Bacon Industry Act, 1938.	The whole Act.
2 & 3 Geo. 6. c. 10.	The Bacon Industry (Amendment) Act, 1939.	The whole Act.
—	The Defence (Agriculture and Fisheries) Regulations, 1939.	Part II. The First Schedule.



Table of Statutes referred to in this Act

Short Title	Session and Chapter
Trustee Act, 1925	15 & 16 Geo. 5. c. 19.
Wheat Act, 1932	22 & 23 Geo. 5. c. 24.
Livestock Industry Act, 1937	1 Edw. 8 & 1 Geo. 6. c. 50.
Bacon Industry Act, 1938	1 & 2 Geo. 6. c. 71.
Agricultural Development Act, 1939	2 & 3 Geo. 6. c. 48.
Agriculture (Miscellaneous War Provisions) Act, 1940	3 & 4 Geo. 6. c. 14.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
Agriculture Act, 1947	10 & 11 Geo. 6. c. 48.
Companies Act, 1948	11 & 12 Geo. 6. c. 38.
Agricultural Holdings Act, 1948	11 & 12 Geo. 6. c. 63.
Agricultural Holdings (Scotland) Act, 1949 ...	12, 13 & 14 Geo. 6. c. 75.
Highways (Provision of Cattle-Grids) Act, 1950	14 Geo. 6. c. 24.
Diseases of Animals Act, 1950	14 Geo. 6. c. 36.
Slaughterhouses Act, 1954	2 & 3 Eliz. 2. c. 42.
Food and Drugs Act, 1955	4 & 5 Eliz. 2. c. 16.
Sugar Act, 1956	4 & 5 Eliz. 2. c. 48.
House of Commons Disqualification Act, 1957	5 & 6 Eliz. 2. c. 20.

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Registration of Births, Deaths and Marriages (Special Provisions) Act, 1957

5 & 6 ELIZ. 2 CH. 58

ARRANGEMENT OF SECTIONS

Section

1. Records of deaths, births and marriages among armed forces and service civilians and their families overseas.
2. Records of deaths and births on board Her Majesty's ships and service aircraft.
3. General provisions as to service departments records.
4. Validation of certain entries in marine register books and in registers kept by Army and Royal Air Force.
5. Registration of births of legitimated persons in the service departments registers.
6. Provisions as to Orders in Council.
7. Short title, etc.

